

10¢

# ASTONISHING

## STORIES

OCT.



10¢

# ASTONISHING

STORIES

OCT.



## **The Project Gutenberg eBook of Remember me, Kama!**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Remember me, Kama!

Author: Walter Kubiľius

Illustrator: John Giunta

Release date: October 12, 2022 [eBook #69140]

Most recently updated: October 19, 2024

Language: English

Original publication: United States: Fictioneers, Inc., 1942

Other information and formats: [www.gutenberg.org/ebooks/69140](http://www.gutenberg.org/ebooks/69140)

Credits: Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

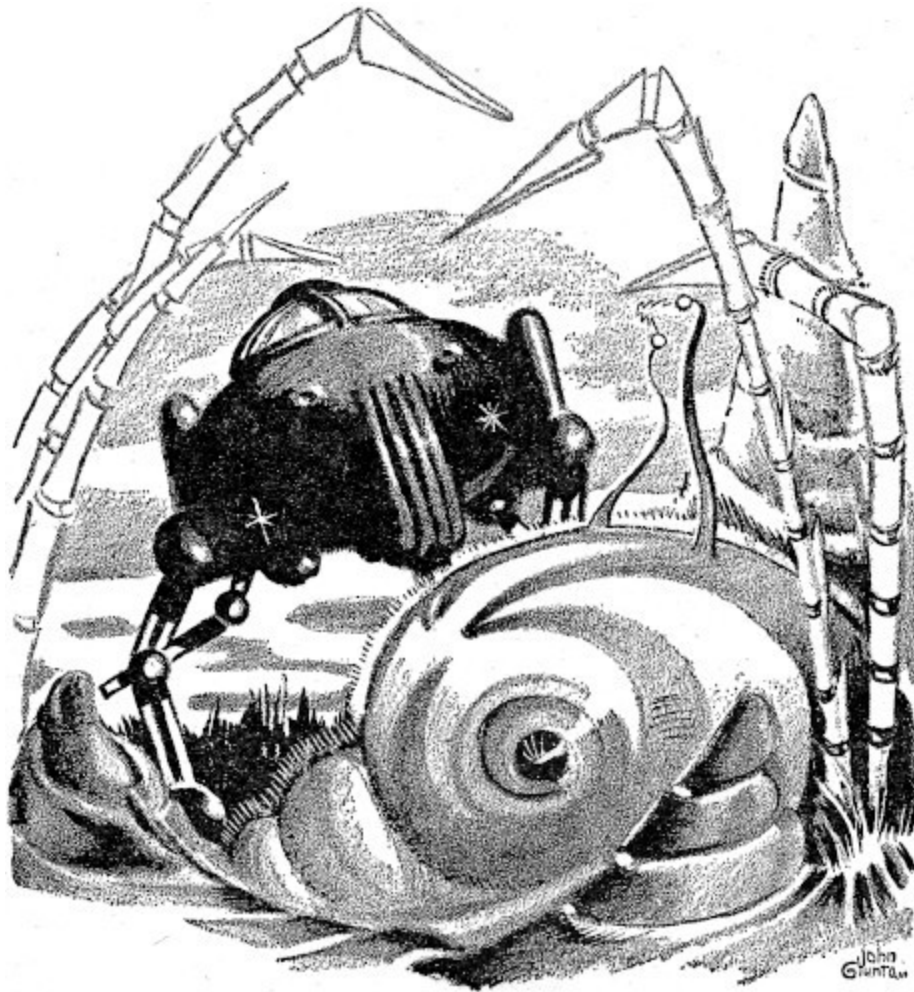
\*\*\* START OF THE PROJECT GUTENBERG EBOOK REMEMBER  
ME, KAMA! \*\*\*

**Remember Me, Kama!**

**By Walter Kubi**

**[Transcriber's Note: This etext was produced from  
Astonishing Stories, October 1942.**

**Extensive research did not uncover any evidence that  
the U.S. copyright on this publication was renewed.]**



---

Old Cobber's hand trembled slightly as he turned his tankbox so that his guns would point at the crew working outside.

Wilson, atop the white hill, watching the men clear away the ammonia snow drifts from the jets of the rocket, was the first to notice the challenging position of Cobber in his tankbox.

"Are you getting in or out of the airlock?" he radioed to Cobber. "Make up your mind."

The old man's lips were dry and his voice was hoarse as he spoke into the mouthpiece.

"I am going to blow up the ship," he said.

Instantly the work of clearing the field stopped. Through the haze of poison air that surrounded the planet, Cobber could see them wheel into a semi-circle not more than thirty yards away from him and the airlock that he held.

Wilson's tank rumbled a few feet forward from the semi-circle.

"You don't dare shoot, Cobber," he said quietly. "You're outnumbered thirty to one."

"Stand back! All of you!" Cobber shouted into the mike. "I'll blow up the first one that moves!"

"Don't be a fool, Cobber," Wilson said. "There's enough catalytic rock stored in the ship for all of us. I can make you a rich man. Put down those guns and we'll forget what has happened. Put down those guns."

"This ship is not going back to Earth," Cobber said.

"Put down those guns, Cobber!" Wilson shouted. "You can't win!"

Cobber turned the knob and shut off Wilson's loud voice. He then opened one of the dinatro bombs that lay beside him, unscrewed the cap and tossed it into the back of the car with the other neatly stacked-up explosives.

"Ten seconds!" he yelled.

The men were stunned for a moment by the suddenness of his decision to blow up the ship. They stood dumfounded, not knowing what to do, until one of them screamed "Dinatro!" Panic-stricken, they dashed their tanks for the meager protection of the nearby cliffs.

Wilson's tank stood still, not moving.

"You're bluffing, Cobber," he called out. "You want to scare the men away so you can seize the ship and get back to Earth. All right, Cobber, you win. Only you and I will share the cargo. I'm coming in."

One second.

Two.

Three.

"There's more than a cargo at stake," Cobber said.

Four seconds.

Five.

Six.

"Remember me, Kama!" Cobber said softly to himself.

Seven.

Eight....

---

The silent bulbous mass that was the Great Kama extended an undulating growing finger and pointed. When Cobber saw the charred bodies of the Kamae he knew what it meant to have one's people ravaged and killed. In that moment he forgot the rosy glow of ammonia snow on the mountain tops and the purple clouds that battled majestically over the planet.

Here and there the anhydrous bodies of the Kamae lay stone still. The small village, tucked away by the shores of the russet sea, was wiped out. Many of the bodies were ripped apart, torn to shreds as if by some monster from the depths of the methane sea.

He had seen death before and he had seen brother kill brother on a hundred different planets in as many solar systems. Each time its horror and tragedy cut him deep. Cobber felt sick at heart.

"I did not know ..." he began despairingly.

His words were cut short by the overwhelming emotion of pain and hurt anger that forced itself out of the organ-less body of the Great Kama, through the poison atmosphere of the planet, through the walls of the tank-car and into Cobber's consciousness. It was held back, its power could overwhelm him, but Cobber could sense the enormity of the tragedy that racked the bubbly form of his Kama friend.

He looked through the window of his small car and watched his strange comrade leave him, gliding like a living liquid over the knolls and hills. Other men of Earth could feel only revulsion and disgust when their eyes fell on one of the Kamae. But Cobber was not like other men.

He had seen, in the years of his wanderings, enough of creation's mysteries to realize that the surface manifestations and expression of life were meaningless. Where men like Wilson would reach for a gun to blast it, Cobber would reach out to it with understanding and friendship.

Be it a crystal that grew into pulsating life with every sun ray, or the flesh and blood of Earth, or the singing strings of Orion—it did not matter. Life alone made them brothers. It was this realization that enabled him to be a friend to Kama. It was this knowledge that made him feel the immensity of the tragic despair which engulfed his strange other-world companion.

Gingerly he adjusted the controls of the tank-car so that it would walk carefully through the village. Years ago the crude spacesuits with which planetary explorers were encumbered were found to be too clumsy and dangerous for use. In their place were developed the tank-cars.

They were miniature houses on wheels and legs, faintly reminiscent of ancient battle-tanks, equipped for travel on sand, rock, hill, water and a thousand other fields. Tentacles, mechanical arms and legs were finally developed, making the tank-cars a thousand times superior to clumsy, inefficient spacesuits.

The metallic legs of the car, immune to the gaseous atmosphere, carefully stepped over the bodies. On the hilltop, through the mist that clouded the vision plates of the car, he could see the other villages being destroyed, as this one was.

Cobber shuddered. The planet of Kama was like death itself without the ghastly war that had descended upon it.

Seeing the crimson thunderhead clouds rear high into the stratosphere and knowing the approach of another storm, he hastened the speed of his car towards the huge mother-ship.

---

In an hour's time he found it, half buried among the great ammonia snow drifts. He folded the legs of his car, let it descend into a riding position and, metallic treads rumbling, rode into the airlock that opened to meet him. As it rolled in, the wall in back descended, imprisoning the car.

He waited patiently as the poison air was extracted from the lock. When the indicators registered the absence of carbon disulphide vapor he opened the top of his car and crawled out. The door leading into the airlock opened. Jina's face greeted him as Cobber walked through.

"Welcome home, Cobber!" he said. "We were beginning to worry about you."

Cobber tapped his feet experimentally on the floor of the ship. "It feels good to stretch out again after fourteen days in the tank. Air would have run low soon."

As was the ship's rule, Jina replaced the empty food drawers, stored up the fuel tanks, replenished the air supply and turned to the stacks of dinatro bombs in the back of the car.

"Shall I clear these out?" Jina asked.

"No. Let them stay," Cobber said. Before he could leave the dressing room the other officers and members of the crew came into the room.

"What did you hear?" they asked. Anxiety was written over their faces. Evidently they had already seen the effects of war. They waited, intent upon him.

"The peace is ended among the Kamae," he told them.

"Is it nation against nation?"

"No. They have not developed as far as that. Isolated tribes have attacked others, wiping them out. One by one the advanced cities that have schools and teachers are being laid low by wandering bands. I saw some of the ruins —"

He broke off and, as if seeing them again in his mind, said, "Old and young. Burnt out bodies buried in snow drifts. No prisoners. Savage war."

"Barbarians!" Jina said.

"Teachers of barbarians!" Cobber said, looking at the men under his command. "They were shown how they might pillage one another in order to bring catalytic to us for trade. Who else would teach them?"

"I left explicit orders," he said angrily, walking back and forth among them, "to give only machinery and gas-proof metals in exchange for their catalytics. I said there was to be no interference with the private life of the Kamae. Why was I disobeyed?" he demanded. "Who told you to change the trade agreements that I had prepared?"

When no answer came he looked at his assistant officer.

"You, Jina. Who handled the trade accounts with the Kamae?"

"Wilson, sir."

Cobber swore, brushed past his men and made his way to the private quarters of Fogarth Wilson. Several of the men moved as if to stop him, but none dared. In the event of a quarrel between the man who ran the ship and the man who owned it, it was best to stay neutral.

---

Wilson was yawning lazily as Cobber walked in.

"Hello, Cobber," he greeted casually. "I was afraid your Kamae friends might have kept you. What did you find out?"

Cobber's voice shook. "You broke the trade agreement!"

Wilson looked up at him, and saw the anger in his eyes. He got up from his bed and walked across the narrow room and stood next to the older man.

"Did you see the store room?" he demanded. "It's one third full. One third full after two weeks of trade! We were here six months and got only a quarter ton of catalytic for the power machines of Earth. In one day I purchased more than you could buy in a month!"

"But at what a price, you fool!"

"Price? Yes! I sold oxygen!" Wilson laughed. "What did you offer them, Cobber? Books and machinery! Books for a savage king and machinery for fools! I gave them what they wanted—pure oxygen!"

Cobber prayed for the strength of a man twenty years his junior. But his weak and old hands would prove of little value against the youthful strength of Wilson.

"Oxygen! In an atmosphere of carbon disulphide and methane you sell them tanks of oxygen!"

"Yes."

"You know what you sell the Kamae?" Cobber asked, gripping him by the shoulders. "Death! A single spark—one rock striking another, a simple stroke—and that oxygen becomes a bursting, fuming flame! In this atmosphere it is worse than the most powerful dynamite. Whole villages have been wiped out. Entire cities have been burned to the ground by your oxygen. You showed them how to use it. You made flame-throwers. You showed them how to kill one another to bring you more catalytics for more weapons!"

"Why not?" Wilson demanded. "I sell them what they want—weapons of war. In selling it I've made enough to outfit a new ship and a new captain."

Cobber looked again at the man he hated. Unlike other sons of the rich who hired ships and captains to squire them in their adventurous tours of other planets, Wilson was not soft. A sensuous line about his lips hid their cruelty. Years of breeding and care, without the knowledge of poverty and the crushing weight of mature responsibility, had given him a smooth powerful body and a quick agile mind that was more callous and hard than the palms of old Cobber's hands.

Wilson owned not only the ship, but Cobber's soul as well. There were debts to be paid back at home. It was so with every man in the crew. Each would suffer if Wilson failed to come back safe and sound. Cobber knew this and Wilson knew it as well. Wilson was the master here—not Cobber.

---

"I spoke with the Great Kama today," Cobber said, remembering his friend.

"Yes. And what did the Messy One have to say?"

"The learned men of the villages, the educated ones, want revenge for the breaking of our trading treaties. They will attack us. They will break off all relations with Earthmen forever unless—"

"Unless what?"

"Unless I surrender you to them."

There was the beginning of a smile on Wilson's lips. It stayed there grimly as he watched indecision, hesitation and conflicting emotions battle in Cobber's eyes.

"You wouldn't dare!" he whispered softly. "In fact," he added, smiling as the thought gave him reassurance, "in fact, you couldn't!" He tried to smile again, but this time found little weakness in Cobber's eyes.

"The whole future of Kama's contact with the Earth depends upon me now," Cobber told him, stepping back a foot and then drawing his ancient revolver from his hip pocket.

Wilson looked at the gun calmly. "You're a fool, Cobber—a doddering old fool!" he said. "If you had done your work as captain without interfering with me I could have made you a rich man."

As he talked he gestured with his hand. With a swift, sudden movement he slapped the gun from Cobber's grip, grasped the old man by his neck and turned quickly, flinging Cobber against the wall. There was a dull thud as Cobber collapsed in a crumpled heap.

Wilson switched on the call board. "Attention! All officers please report to my quarters immediately. Wilson speaking. That is all."

Turning it off he came back again to the slowly rising Cobber.

"You're finished," he said. "Finished!"

The men drifted in one by one. When all had assembled, facing Wilson and Cobber, the younger man spoke.

"In view of the critical situation now facing us and the imminence of an attack by the savage Kamae, I have deemed it advisable to make some changes in the commanding personnel of my ship. With due respect for his splendid accomplishments in the past, I now relieve Cobber of his duties as

commanding captain of this ship. He will henceforth function as second assistant navigator. Commanding Captain Jina, you will carry on."

Cobber ripped off the single star that emblazoned his sleeve and gave it to Jina. He walked past the stunned officers and men, past them all, into the corridor, down the steps and to the airlock.

---

The raging storm above had died. At times a lonely star peered through crimson clouds and then, as if frightened at the sight, disappeared from view. White flakes, so reminiscent of snow on Earth, settled softly upon the planet. From time to time he would brush the windows of his tankbox and peer out to watch for the approach of his friend.

He saw him, a white globule-like mass, slithering over the rolling hill and coming towards him. He raised one of the arms of the car in recognition. Instantly a gray finger extended from the bulbous mass in answer.

The strange being was standing beside the tankbox that enclosed Cobber. No message came from its brain as it waited for the thoughts to form in Cobber's mind.

*I am ashamed*, Cobber thought.

There was no answer, but a wave of pained bewilderment flooded upon him. Then the accusing words, *You failed*.

*Yes, I failed*, Cobber said, the bitterness of complete defeat rankling in his heart. *The man your people want for revenge is my chief. I cannot deliver him. I cannot!*

*When Cobber first came to our planet*, the Great Kama's thoughts rang in his head, *who welcomed him? Who crossed the barriers between our different forms of life? Who told Cobber the tragic history of our people? Who told him the secrets of our learned teachers?*

There was a long pause and then the Great Kama answered his own questions.

*I did these things, for I thought Cobber was my friend.*

Cobber wanted to shout, "I am your friend, believe me!" but he knew that the Great Kama could not look upon him as one single individual apart from his men. He was a symbol, the embodiment of the best that a different people could offer. If Cobber had failed him—Cobber, the wisest—then friendship between the planets was doomed forever.

*I gave friendship—and what has Cobber's answer been? Your people sold weapons to the ignorant and brutal of my people. You taught them to kill and burn. You aroused the greed and lust in us with the offer of power. We reached for knowledge—and you pushed us back into the depths of savagery. Are you my friend, Cobber?*

Cobber could not answer. Powerless, impotent, he could not fulfill the demand for just revenge that Kama had asked. A thousand plans pursued their way through his mind. A thousand solutions leapt up, offering themselves. He could have killed Wilson and shown them the body. But it would have meant death for all them in the courts of Earth.

What was the alternative? In his mind he could see the story. The spaceship would return home with a cargo full of catalytic and the story of ignorant beings willing to mine the metal for tanks of oxygen. Cheap, easy to manufacture oxygen in exchange for power! Other ships would come and other men like Wilson, greedy men, powerful men, men with lust in their hearts.

Kama's people, scarcely on the first rung of civilization's ladder, would be thrust back into the darkness. Tribal warfare, spurred on and encouraged by Earthmen, would deplete the planet. A new culture, just born, would die. Was this a fair price for the greed markets of Earth?

*Are you my friend?* He heard the thought again.

Slowly he rode back to the spaceship. The storm was over. The crew of the ship were clearing the ammonia drifts away in preparation for the blasting.

The airlock was open. Cobber rode to it and turned around, guns facing his men.

Six seconds.

Seven.

"I am your friend, Kama," Cobber said softly to himself. "Remember me!"

Eight seconds.

Nine.

There was a blinding flash of light as jagged white flames reached into a blood-red sky, tearing apart like a paper box the last ship commanded by Cobber.

From a hilltop in the distance Kama saw the flash and heard the rumble. When it died down the evening silence fell again he knew what Cobber had done.

Other years would bring other ships from Earth. If in them were men like Cobber, the barrier between different peoples might yet be crossed.

\*\*\* END OF THE PROJECT GUTENBERG EBOOK REMEMBER ME,  
KAMA! \*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

# THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

## **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

## 1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

### **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

### **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:  
[www.gutenberg.org](http://www.gutenberg.org).

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.